NATIONAL COMPANY LAW TRIBUNAL **ITEM NO :1**
ALLAHABAD BENCH

CA NO. 14/2021 IN
CA (CAA) NO.05/ALD/2021

ATTENDENCE - CUM-ORDER SHEET OF THE HEARING OF ALLAHABAD BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 07.07.2021 AT 10:30 AM THROUGH VIDEO CONFERENCING.

NAME OF THE COMPANY : RAMAA SHYAMA PAPERS PVT. LTD. WITH SAPTAM DECOR PVT. LTD. & ANR.

SECTION : 230/232 OF COMPANIES ACT 2013

PRESENT : HON'BLE MR. JUSTICE (RETD.) RAJESH DAYAL KHARE, MEMBER (J)

COUNSEL FOR APPLICANT : SH. ARUN SAXENA ALONG WITH MS. NALINI, SH. SHIVAM MISHRA & SH. RAHUL SINGH, ADVS.

CA NO.14/2021 IN CA (CAA)NO.05/ALD/2021

The matter was taken up today through Video Conferencing.

Heard Sh. Arun Saxena along with Ms. Nalini, Sh. Shivam Mishra and Sh. Rahul Singh, Advocates for the applicant through video conferencing, who has filed the present CA NO.14/2021 in CA (CAA)NO.05/ALD/2021 praying to fix a fresh date and time for holding meeting as directed vide order of this Tribunal dated 24.03.2021 and further to allow the said meeting to be held via virtual mode and to direct the applicant to publish a fresh corrigendum about the fresh date and time of the meeting in Newspaper Business Standard (Hindi and English Version), Lucknow Edition.

It is contended that vide order dated 24.03.2021 passed by this Tribunal, meeting was directed to be held. A notice of the said meeting was sent to the concern parties and the same was also published and affidavit of compliance of order dated 24.03.2021 was filed by the applicant. However, it is contended that in the second week of April, 2021, the Country has witnessed an alarming surge in Covid-19 cases and on account of the extreme conditions, it was not possible to hold the meetings as directed by this Tribunal via physical mode, as it could jeopardize the life and safety of the participants who were to be present in the said meeting and therefore, the applicant moved an application on 30.04.2021, seeking permission of this Tribunal to hold the meeting scheduled on 08.05.2021 via virtual mode instead of physical mode but as the Bench was not sitting due to severe Covid-19 condition, application could not be taken up. Therefore, the present application has been moved.

Accordingly, the present application is hereby allowed. Let, the fresh meeting be held on 28th August, 2021 via virtual mode, if they desire to do so, and fresh corrigendum regarding the same, may also be issued within a week from the date of passing of this order.

The present application stands disposed off accordingly.

-Sd-

Dated : 07.07.2021

JUSTICE RAJESH DAYAL KHARE
(MEMBER JUDICIAL)

Typed by :
Kavya Prakash Srivastava
(Stenographer)